

and by counsel. The petitioner shall explain if Dev Patel was hired by the estate to perform duties that the petitioner was to perform or to perform expert services. The petitioner shall explain why the court should not consider a reduction in any compensation for the petitioner or surcharge him for any losses to the estate.

LINE

4

IN RE THE ESTATE OF ELMETT J. BATTISTE, DECEASED
PR24-00153

Petition for Final Distribution on Waiver of Account, Report of Administrator, Waiver of Administrator's Statutory Compensation, Verification

PREGRANT ORDER

This matter was continued from March 18, 2026, May 7, 2026, and July 2, 2026 to allow the petitioner to address issues with the petition. Counsel appeared at the last hearing, but no Substitution of Attorney was filed. Nothing has been filed since the last hearing to resolve the outstanding issues.

The court on its own motion continues this hearing to November 12, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 2: Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters are issued if an estate tax return is required. Here, letters were issued on July 11, 2024. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by July 11, 2025. No status report was filed in 2025, and the initial petition for final distribution was dismissed. There is no explanation given for the delays and the failure to resolve the issues with the initial petition for final distribution.
 2. Petition, item 18: It is unclear how the petitioner is the sole beneficiary. The decedent was survived by a father who died two years after the decedent and would be the sole heir of the estate. The petitioner shall explain and provide a family tree to show how petitioner is related to the decedent and any other supporting documents for the court's review.
 3. The Inventory and Appraisal filed on August 27, 2024, is incomplete. Items 3-5 were not completed.
-